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ቅጺ 12/2003 ቁ፡6 አስመራ፡ 8 ሐምሌ 2003 ዋጋ 3.00 ኖቼፋ

ሕጋዊ ምልክታ ቁጽሪ 78/2003
ንፍቓድ እታውን እውጃት አቐሑትን ዝምልከት ሕጋጋት

GAZETTE OF ERITREAN LAWS
PUBLISHED BY THE GOVERNMENT OF ERITREA

VOL 12/2003 No. 6 Asmara 8th July, 2003 Price 3.00 Nakfa

Legal Notice No 78/2003
Regulations Regarding Import Permits and
Declared Goods



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I. መእተዊ

1. ሓጺር አርእስቲ

እዚ ሕጋጋትዚ "ንፍቃድ እታውን እዉጃት አቕሑትን ዝምልከት ሕጋጋት— ሕጋዊ ምልክታ ቁ. 78/03" ተባሂሉ ክጥቀስ ይከኣል።

2. ትርጉም

አታአታትዋኡ ካልእ ትርጉም ዘውሀቦ እንተዘይኮይኑ፡-

1. “እታው” ማለት ካብ ወጻኢ ሃገር ናብ ኣርትራ ዝኣቱ አቕሑ ማለት እዩ፤
2. “እዉጃት አቕሑ” ማለት ኣብ ኣዋጅ ቁጽሪ 125/2002 ዝተዋሀበ ትርጉም ይሕዝ፤
3. “ሚኒስተር ወይ ሚኒስትሪ” ማለት ሚኒስተር ወይ ሚኒስትሪ ንግድን ኢንዱስትሪን ማለት ኢዩ፤
4. “ሰብ” ማለት ባህሪያዊ ሰብ ወይ ሕጋዊ ሰብነት ዝተዋሀበ ኣካል ማለት እዩ፤
5. “ናይ እታው ፍቓድ” ማለት ካብ ወጻኢ ሃገር አቕሑ ከእቱ ንዝተፈቐደሉ ሰብ ብሚኒስትሪ ዝወሃብ ጽሑፍ ኢዩ፤
6. “ፍራንኮ ቫሉታ” ማለት አቕሑ ካብ ወጻኢ ሃገር ከእቱ ዝተፈቐደሉ ሰብ፣ ብናይ ገዛእ ርእሱ ምንጪ ናይ ወጻኢ ሸርፊ፣ ገዚኡ ንኸምጽእ ዝካየድ መስርሕ እታው ዘመልከት ኢዩ።

II. ንእታው ዝምልከት

3. ናይ እታው ፍቓድ

- (1) ዝኸነ ካብ ወጻኢ ሃገር ንግዳዊ አቕሑ ከእቱ ዝደሊ ሰብ፣ ካብ ሚኒስትሪ ወይ ሚኒስትሪ ብወግዒ ካብ ዝወከሎ ሰብ አቕዲሙ ፍቓድ እታው ክረክብ ይግባእ።
- (2) ንነፍሲ ወከፍ ብሓደ እዋን ዝመጽእ እታው ናይ እታው ፍቓድ የድሊ።
- (3) ናይ እታው ፍቓድ መመልከቲ ነዚ ጉዳይዚ ኣመልኪቱ ሚኒስትሪ ብፍሉይ ብዘዳለዎ ቅጥዒ መሰረት ጥራይ ተመሊኡ ይቐርብ።
- (4) ሚኒስትሪ ናይ እታው ፍቓድ መመልከቲ፣ በብእዋኑ ምስ ዝሰራዕ ቀዳምነታት ሃገር ዝሰነ ምዃኑን እታው ተወዳዳሪ ዋጋ ምሓዙን ኣብ ግምት ብምእታው ናይ እታው ፍቓድ ይህብ። ናይ እታው ፍቓድ ጊዜ ገደብ፣ ብሚኒስትሪ ይውሰን።

4. አገባብ አጠቃቅማ ፍቃድ እታው

- (1) ዝኾነ ብሚኒስትሪ ናይ እታው ፍቃድ ዝተዋህቦ ሰብ፡ ዘምጽአም አቕሑ ብመንገዲ ባንክ ኤርትራ ወይ ንግዳዊ ባንክታት ኤርትራ ጥራይ ኮይኑ፡ ኣብ ባንክ ኤርትራ ወይ ንግዳዊ ባንክታት ኤርትራ ለተር ኦቭ ክረዲት (Letter of credit) ብምክፋት ወይ ባንክ ኤርትራ ቅበላት ኣገባብ ኣሰራርሓ ባንክ ምዃኖም ብዝፈቐዶም ኣገባብ ኣሰራርሓ ብምጥቃም ይፍጸም።
- (2) ባንክ ኤርትራ ይኹን ንግዳዊ ባንክታት ኤርትራ ቅድሚ ለተር ኦቭ ክረዲት ምክፋተን፡ ኣምጻኢይ ካብ ሚኒስትሪ ናይ ፍቃድ እታው ምርካቡ ክረጋግጹ ይግባእ ።
- (3) ኣቑሑት ብፍራንኮ-ቫሉታ ምእታው ፍቓድ ኮይኑ፡ ናይ እታው ፍቃድ የድልዮ።

III. ንእውጃት ኣቑሑት ዝምልከት

5. እውጃት ኣቑሑት

- (1) እዞም ትሒቶም ተዘርዚሮም ዘለዉ ኣቑሑ ብመሰረት ኣዋጅ ቁ.125/2002 “እውጃት ኣቑሑት” ኮይኖም ኣለዉ።

ተ.ቁ.	ዓይነት ኣቑሓ	መብርሂ
	ሀ. መግቢ	
1	እክለ	ካብ ደገ ዝኣቱ ስርዓይ፡ ማሸላ ወይ ዕፋን፡
2	ፊኖ	
3	ፓስታ	
4	ሩዝ	
5	ጥረታት	ካብ ደገ ዝኣቱ ዓተር፡ ዓይኒ ዓተር፡ ባልደንጋ ወይ ብርስን
6	ዘይቲ ብልዲ	
7	ጸባ (ሓርጭ)	
8	ሽኮር	
9	ቡን	ካብ ደገ ዝኣቱ ዝተቐልወን ዘይተቐልወን
10	ቆጽሊ ሻሂ	
11	ለ. ዓለባ	ኣበጃዲድ፡ ካኪ፡ ወይ ኮቦርታ
	ሐ. ናይ ህንጻ ጥረ-ነገራት	
12	ቸመንቶ	
13	ኣብ ኣገልግሎት ህንጻ ዝውዕል ሓጺን መጺን	
14	ኣብ ኣገልግሎት ህንጻ ዝውዕል ላሚራታት	
15	ኣብ ኣገልግሎት ህንጻ ዝውዕል ዕንጨይቲ	
16	ኣብ ኣገልግሎት ህንጻ ዝውዕል ቨርኒቺታት	

- (2) ሚኒስትሪ ኣብ ልዕሊኹም ተገሊጾም ዘለዉ “እውጃት ኣቑሑት”፡ ምቁጽጻር ዋጋ ክገብር ኢዩ። እዚ ምቁጽጻር ዋጋ፡ ብዝሰበክ ክልተ ዓይነት ኣገባባት ተፈጻሚ ይኸውን፡-

- ሀ) ዝለዓለ ዋጋ መሸጣ ብምውሳኝ ወይ
- ለ) መሸጢ ዋጋ ብምውሳኝ።

ኩነታት ዕዳጋን ኣገባብ ዝርጋሒ ኣቑሓን ኣብ ግምት ዘእተወ፡ ንነፍሲ ወከፍ “እውጅ ኣቑሓ” ዝምልከት ሚኒስትሪ ፍሉይ መምርሒታትን ትእዛዝን የውጽእ።



IV. ዝተፈላለዩ ድንጋጌታት

6. ኢንስፐክሽን

ሚኒስትሪ ወይ ንሱ ብወግዒ ዝወከሉም ተቆጻጸርቲ፡ ድንጋጌታት ኣዋጅ ቁ.125/2002 ብግብ-እ ይትግበር ምህላወ. ንምቁጽጸር ኣቕሑ ኣብ ዝሸየጡሉን ዝኸዘኒሉን ህንጻ ኣብ ቅቡል ሰዓታት ስራሕ ክኣትዉን ኣድላዩ ቁጽጽር ከካይዱን ይኽእሉ።

7. ኣብ ግብሪ ዝውዕሉ

እዚ ሕጋዊትዚ ኣብ ጋዜጣ ኣዋጃት ኤርትራ ታሓቲሙ ካብ ዝወጸሉ ዕለት ጀሚሩ ኣብ ግብሪ ይውዕል።

እስመራ 8 ሐምሌ 2003
ዶ/ር ጊርግሽ ተኸለሚ ካኤል፡
ሚኒስተር ንግድን ኢንዱስትሪን።

Legal Notice No.78/2003

Regulations Regarding Import Permits and Declared Goods

I-Preliminary

1. Short Title

These Regulations may be cited as the " Regulations Regarding Import Permits and Declared Goods-Legal Notice No. 78/2003".

2. Definition

Unless the context otherwise requires:

- 1 "Imports" means goods brought from abroad into Eritrea;
- 2 "Declared Article" shall have the meaning given to it under Proclamation No. 125/2002;
- 3 "Minister or Ministry" means the Minister or Ministry of Trade and Industry, respectively;
- 4 "Person" means a physical or juridical person;
- 5 "Import Permit" means a written document issued by the Ministry to a person permitted to import goods;
- 6 "Franco-valuta" refers to a process of importing goods by a person permitted to do so by using foreign currency from his own source.

II-Imports

3. Import permits

- (1) Any person desiring to import commercial goods shall first obtain an import permit from the Ministry or any person authorized by it.
- (2) An import permit shall be required for every consignment.
- (3) An application for an import permit shall only be filled in a form especially prepared by the Ministry for this purpose.
- (4) The Ministry shall issue an import permit taking into account that the application complies with national priorities established from time to time and time and that the goods for which the import permit is applied are of competitive value. The time limit for an import permit shall be determined by the Ministry.

4. Mode of using import permit

- (1) Any person given an import permit by the Ministry shall import only through the Bank of Eritrea or the commercial banks by opening a letter of credit with the Bank of Eritrea or the commercial banks of Eritrea or employing any other mode of payment approved by the Bank of Eritrea.
- (2) The Bank of Eritrea or the commercial banks shall ascertain that the

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importer has acquired an import permit from the Ministry before opening the letter of credit.

- (3) Importing through "Franco-Valuta" shall be permitted, but an import permit shall be required.

III-Declared Articles

5. Declared Articles

- (1) The commodities enumerated herein below have been designated "declared articles" pursuant to Proclamation NO. 125/2002:

No.	Commodity Group	Remarks
	A. Food	
1	Cereals	imported wheat, sorghum or maize
2	Flour	
3	Pasta	
4	Rice	
5	Leguminous vegetables	imported beans, peas, chick peas or lentils
6	Edible Oil	
7	Milk (powder)	
8	Sugar	
9	Coffee	Imported and roasted or unroasted coffee
10	Tea	
11.	B. Textile	Abujedid, kaki or blanket
	C. Building Materials	
12	Cement	
13	Metals used for construction	
14	Metal sheets used for construction	
15	wood used for construction	
16	paints used for construction	

- (2) The Ministry shall impose price control on the above-mentioned declared articles and such price control shall be exercised:
- (a) by determining the maximum selling price, or
 - (b) by fixing the sales price.

The Ministry shall issue orders and directives regarding the market situation and distribution of every declared article.



IV-Miscellaneous Provisions

6. Inspection

The Minister or inspectors appointed by the Minister may enter into premises where goods are sold or stored to ascertain that the provisions of Proclamation NO. 125/2002 are complied with.

7. Entry in to force

These Regulations shall enter into force as of the date of their publication in the Gazette of Eritrean Laws.

Done at Asmara this 8th day of July, 2003.

Dr. Giorgis Teklemikael

Minister of Trade and Industry.



10	Tes	
9	Coffee	
8	Sugar	
7	Milk (powder)	
6	Edible oil	
5	Leguminous vegetables	
4	Rice	
3	Wheat	
2	Maize	
1	Beans	

11	B. Textile	
12	C. Building Materials	
13	Cement	
14	Metal sheet for construction	
15	Wood used for construction	
16	Paint used for construction	